Understanding Estate Planning in India through the lens of *Waqf*

By Mudra Mehta | Waqf | 6 min read

Estate planning in India is often reduced to a single idea. It is commonly understood as writing a will. However, the legal framework is far more diverse. It includes mechanisms such as gifts, trusts, family settlements, and waqf. Each of these serves a distinct purpose. Each operates within different legal and social contexts.

Estate planning in India has evolved through layered legal traditions. Pre-colonial India relied heavily on personal laws and customary practices. Property was often transferred within families through informal arrangements. With the advent of colonial rule, these practices were subjected to formal legal scrutiny. This led to the codification of succession laws and the recognition of specific instruments.

Within Islamic law, the institution of waqf emerged as a significant form of estate planning. The concept originates from the Arabic term meaning restraint. It refers to the permanent dedication of property for religious or charitable purposes. Once created, the property cannot be sold, inherited, or transferred. Its benefits continue indefinitely.

The legal recognition of waqf in India has undergone several transformations. Early colonial resistance to family waqf was reversed through the Mussalman Wakf Validating Act, 1913.

Post-independence, the Waqf Act, 1954 introduced institutional oversight through State Waqf Boards. This framework was later consolidated under the Waqf Act, 1995, which remains the principal legislation today. Subsequent amendments, including those in 2013 and the proposed reforms in 2025, have aimed to improve transparency and governance.

The scale of waqf in India is substantial. There are over 8.72 lakh waqf properties across more than 38 lakh acres. These properties include mosques, schools, hospitals, and community spaces. Despite this, public understanding of waqf remains limited.

How Waqf Function

Waqf operates on a distinct principle. It involves three key elements. The donor, known as the wāqif, dedicates property. The beneficiaries receive its benefits. The mutawalli manages the property. The defining feature is permanence. The asset is preserved. Only its benefits are used.

This structure reflects a broader philosophy. Property is treated not merely as wealth, but as a social resource. As noted in the explanatory material, waqf ensures that "the asset remains while the benefit is distributed." This creates a system of sustained utility rather than one-time transfer.

The legal structure involves multiple institutions. These include State Waqf Boards, the Central Waqf Council, and Waqf Tribunals. While this framework ensures governance, it also increases procedural complexity. Issues such as mismanagement, encroachment, and litigation further complicate the system. For instance, thousands of waqf properties remain under dispute or encroachment, which discourages new endowments.

At the individual level, waqf, it also provides a form of enduring legacy. The benefits of the asset continue even after death. This aligns with the idea of ongoing charity, where the impact extends across generations.

At the societal level, waqf supports long-term community development. It funds institutions such as schools, hospitals, and public utilities. It also contributes to poverty alleviation and social equity.

The Present Gap

The present situation is marked by three gaps. ***First***, there is a gap between awareness and understanding. ***Second***, there is a gap between understanding and action. ***Third***, there is a gap

between legal availability and practical accessibility. These gaps are reinforced by normative bias. Wills dominate both awareness and preference. Other mechanisms remain underutilized. At the same time, complexity discourages engagement. This creates a cycle where limited understanding leads to limited use.

The analysis of waqf demonstrates that estate planning is not merely a private exercise in asset distribution. It is also a tool for sustained social contribution. Its structure, which preserves the asset while distributing its benefits, offers a model of long-term planning that extends beyond individual interests. However, this potential is constrained by procedural complexity, institutional challenges, and limited awareness.

The present gaps between awareness, understanding, and action indicate that the issue is not one of legal deficiency, but of accessibility. Without clear, structured, and simplified modes of communication, existing legal frameworks remain underutilized. Reform, therefore, must focus on translation rather than transformation. Legal knowledge must be made intelligible, relatable, and practically usable.

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